COMMERCIAL & OPERATIONAL INSTRUMENT: Vendor Managed Services and Outsourcing Agreement
Instrument No.: DG-CON-2025-0120 | Effective as of 2025-08-15 | Version 4.1
Between: Helios Grid Infrastructure Corp. and Lumina Educational Publishing Group
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1. PURPOSE, DEFINITIONS, AND SCOPE OF SERVICES
1.1 Scope of Engagement. This Vendor Managed Services and Outsourcing Agreement ("Agreement") is entered into as of 2025-08-15 by and between Helios Grid Infrastructure Corp., a Colorado corporation with principal offices at 1801 California Street, Suite 2400, Denver, CO 80202 ("Provider"), and Lumina Educational Publishing Group, a Massachusetts entity located at 200 Clarendon Street, Floor 19, Boston, MA 02116 ("Customer"). Provider shall provision, host, maintain, and support the enterprise software platform, application programming interfaces (APIs), and associated technical environments described in the applicable Order Form (collectively, the "Hosted Services").
1.2 Permitted Users and Affiliates. Customer may authorize its employees, contractors, and designated corporate affiliates to access and use the Hosted Services solely for Customer's internal business operations. Customer remains responsible for ensuring that all Authorized Users comply with the usage parameters and security controls set forth in this Agreement.
1.3 Service Level Commitment and Architecture. Provider shall use commercially reasonable efforts to maintain monthly platform availability of at least 99.95%, excluding scheduled maintenance windows announced at least forty-eight (48) hours in advance and force majeure events outside Provider's reasonable control. Provider shall maintain logically isolated tenant environments and redundant database replicas across geographically separated availability zones.

2. CUSTOMER DATA STEWARDSHIP, SUBPROCESSORS, AND COOPERATION
2.1 Ownership of Customer Data. As between the parties, Customer retains all right, title, and interest in and to all electronic data, records, files, and configurations submitted by or on behalf of Customer to the Hosted Services ("Customer Data").
2.2 Subprocessor Governance. Provider shall maintain an up-to-date list of authorized third-party infrastructure and support subprocessors and shall impose written data protection obligations on each subprocessor that are no less protective than those contained in this Agreement.
2.3 Technical Documentation and Reporting. Provider shall make available to Customer standard operational telemetry, quarterly service performance summaries, and annual third-party audit attestations (including SOC 2 Type II executive summaries) upon written request.

3. TERM, RENEWAL, TERMINATION, AND EXIT ASSISTANCE
3.1 Initial Term and Mutual Renewal. The initial term of this Agreement shall be twelve (12) months commencing on 2025-08-15. Thereafter, this Agreement may be renewed for successive twelve (12) month renewal terms only upon mutual written execution of a renewal Order Form by both parties at least 45 days prior to expiration.
3.2 Termination Rights and Data Return. Either party may terminate this Agreement for convenience upon 45 days' prior written notice, or immediately upon written notice if the other party fails to cure a material breach within 15 days after receiving written notice thereof, and upon termination Provider shall return or securely delete all Customer Data within 45 days.
3.3 Transition Cooperation. During the 45-day post-termination transition window, Provider shall make standard self-service export tools available at no additional fee so Customer can retrieve all Customer Data in structured CSV, JSON, or SQL dump formats.

4. WARRANTIES, MUTUAL INDEMNIFICATION, AND BALANCED RISK ALLOCATION

4.1 Performance Warranty. Provider warrants that the Hosted Services will perform materially in accordance with the published documentation throughout the Subscription Term. If Provider fails to meet this warranty, Customer's remedies include prompt remediation by Provider, service level credits, and the termination and pro-rata refund rights under Section 3.2.

4.2 Mutual Intellectual Property and Data Indemnification. Each party shall defend, indemnify, and hold harmless the other party from third-party claims arising out of gross negligence, willful misconduct, or infringement of third-party intellectual property rights.

4.3 Mutual Limitation of Liability. Except for indemnification obligations, confidentiality breaches, or willful misconduct, neither party's aggregate cumulative liability under this Agreement shall exceed the total fees paid or payable by Customer during the 18-month period immediately preceding the claim.

5. CONFIDENTIALITY, COMPLIANCE, AND MISCELLANEOUS PROVISIONS

5.1 Confidentiality Undertakings. Subject to the express license and data rights in Section 3, each party agrees to apply reasonable administrative and physical safeguards to protect non-public business information disclosed by the other party and marked as confidential.

5.2 Force Majeure and Assignment. Neither party shall be liable for delays caused by natural disasters or governmental acts beyond reasonable control. This Agreement shall be governed by and construed in accordance with the laws of the State of Colorado, without regard to conflict of law principles.

5.3 Entire Agreement and Execution. This Agreement, together with its referenced Schedules and Order Forms, constitutes the entire understanding between Helios Grid Infrastructure Corp. and Lumina Educational Publishing Group regarding the subject matter hereof and supersedes all prior proposals or communications.